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LOUISIANA *v.* CALLAIS ET AL.

APPEAL FROM THE UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF LOUISIANA

No. 24–109. Argued March 24, 2025—Reargued October 15, 2025—Decided April 29, 2026*

These cases concern whether Louisiana's new congressional map is an unconstitutional racial gerrymander. In 2022, after the State redrew its congressional districts, a federal judge in *Robinson* v. *Ardoin*, 605 F. Supp. 3d 759 (MD La.), held that the 2022 map likely violated §2 of the Voting Rights Act of 1965, 52 U. S. C. §10301 *et seq.*, because it did not include an additional majority-black district. But when the State drew a new map, SB8, that contained such a district, the new map was challenged as a racial gerrymander. A three-judge court in *Callais* v. *Landry*, 732 F. Supp. 3d 574 (WD La.), held that SB8 violated the Equal Protection Clause of the Fourteenth Amendment, and the State appealed to this Court.

The parties originally briefed and argued this suit last Term, and their arguments at that time highlighted problems in the existing body of §2 case law. One problem resulted from the rule that in racial gerrymandering cases, unlike other cases involving claims of racial discrimination, strict scrutiny is triggered only if race "predominated" in the State's decisionmaking process. Another problem stemmed from the long-unresolved question whether compliance with the Voting Rights Act provides a compelling reason that may justify the intentional use of race in drawing legislative districts. For over 30 years, the Court has simply assumed for the sake of argument that the answer is yes. These and other problems convinced the Court that the time had come to resolve whether compliance with the Voting Rights Act can indeed provide a compelling reason for race-based districting.

Held: Because the Voting Rights Act did not require Louisiana to create an additional majority-minority district, no compelling interest justified the State's use of race in creating SB8, and that map is an unconstitutional racial gerrymander. Pp. 107–126.

(a) The Constitution almost never permits a State to discriminate on the basis of race, and such discrimination triggers strict scrutiny. The Court's precedents have identified "only two compelling interests" that

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*Together with No. 24–110, *Robinson et al.* v. *Callais et al.*, on appeal from the same court.

can satisfy strict scrutiny: "avoiding imminent and serious risks to human safety in prisons," and "remediating specific, identified instances of past discrimination that violated the Constitution or a statute." *Students for Fair Admissions, Inc.* v. *President and Fellows of Harvard College*, 600 U. S. 181. The question presented is whether compliance with §2 of the Voting Rights Act should be added to this very short list of compelling interests. The Court now holds that compliance with §2, *as properly construed*, can provide such an interest. A proper interpretation of §2 requires examining the statutory text to understand what it demands with respect to drawing legislative districts. Pp. 107–116.

(1) Under Section 2(a), the Court takes as a given that a legislative districting map may constitute a "standard, practice, or procedure" that may violate §2 if it "results in a denial or abridgement" of the right to vote "on account of race or color." Section 2(b) establishes that a violation occurs when political processes are "not equally open to participation by" members of a racial group "in that [they] have less opportunity than other members of the electorate to . . . elect representatives of their choice." The key concept is "less opportunity than other members of the electorate," which sets a baseline against which to assess the opportunity of minority voters. That baseline—the opportunity that any given group of voters has to elect their candidate of choice—depends on the voting preferences of other voters in the district. For example, in a district where most voters prefer Democratic candidates, a Republican voter in that district will have a low chance of securing the election of his or her preferred candidate. The roster of voters who end up in a given district depends, in turn, on the districting criteria the State uses to draw a legislative map. Thus, the "opportunity" of these "members of the electorate" to contribute their votes to a winning cause is whatever opportunity results from the application of the State's combination of permissible districting criteria. That is what a randomly selected individual voter and group of voters can expect regarding their opportunity to elect their preferred candidate. Under §2, a minority voter is entitled to nothing less and nothing more. Pp. 109–112.

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(2) This interpretation is the best reading of the statutory text and ensures that §2 of the Voting Rights Act does not exceed Congress's authority under §2 of the Fifteenth Amendment, which confers on Congress the "power to enforce [the Amendment] by appropriate legislation." As the Court has long held, the Fifteenth Amendment bars only state action "'motivated by discriminatory purpose.'" *Reno* v. *Bossier Parrish School Bd.*, 520 U. S. 471, 481. So a law that seeks to enforce the Fifteenth Amendment by prohibiting mere disparate impact would fail to enforce a right that the Amendment secures. That is never "ap-

propriate," *South Carolina* v. *Katzenbach*, 383 U. S. 301, 308, because Congress cannot "enforce a constitutional right by changing what the right is," *City of Boerne* v. *Flores*, 521 U. S. 507, 519. For this reason, the focus of §2 must be enforcement of the Fifteenth Amendment's prohibition on *intentional* racial discrimination. When §2 of the Act is properly interpreted, it imposes liability only when circumstances give rise to a strong inference that intentional discrimination occurred. Properly understood, §2 thus does not intrude on States' prerogative to draw districts based on nonracial factors, including to achieve partisan advantage. In short, §2 imposes liability only when the evidence supports a strong inference that the State intentionally drew its districts to afford minority voters less opportunity because of their race. Not only does this interpretation follow from the plain text of §2, but it is consistent with the limited authority that the Fifteenth Amendment confers. Pp. 112–116.

(b) This interpretation does not require abandonment of the framework for evaluating §2 claims that the Court established in *Thornburg* v. *Gingles*, 478 U. S. 30. The Court need only update the framework so it aligns with the statutory text and reflects important developments since the Court decided *Gingles* 40 years ago. Four historical developments are of particular note. First, vast social change has occurred throughout the country and particularly in the South, which have made great strides in ending entrenched racial discrimination. Second, a full-blown two-party system has emerged in the States where §2 suits are most common, and there is frequently a correlation between race and party preference. Third, in *Rucho* v. *Common Cause*, 588 U. S. 684, this Court held that partisan gerrymandering claims are not justiciable in federal court, and this holding creates an incentive for litigants to exploit §2 for partisan purposes by "repackag[ing] a partisan-gerrymandering claim as a racial-gerrymandering claim," *Alexander* v. *South Carolina State Conference of NAACP*, 602 U. S. 1, 21. Fourth, the increased use and capabilities of computers in drawing districts and creating illustrative maps means that a §2 plaintiff can easily identify an alternative map that fully achieves all the State's legitimate goals while producing greater racial balance, if such a map is possible. In light of these developments, the Court updates the *Gingles* framework and realigns it with the text of §2 and constitutional principles. Pp. 116–121.

(1) The first *Gingles* precondition is that a community of minority voters must be sufficiently numerous and compact to constitute a majority in a reasonably configured district. While many §2 plaintiffs have simply provided illustrative maps with their desired number of majority-minority districts, such maps prove only that the State *could* create an additional majority-minority district, not that the State's fail-

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ure to do so violated § 2 of the Voting Rights Act. To show the latter, plaintiffs' illustrative maps must satisfy two conditions: Plaintiffs cannot use race as a districting criterion in drawing illustrative maps, and illustrative maps must meet all the State's legitimate districting objectives, including traditional districting criteria and the State's specified political goals. Pp. 118–119.

(2) To satisfy the second and third preconditions—politically cohesive voting by the minority and racial-bloc voting by the majority—the plaintiffs must provide an analysis that controls for party affiliation, showing that voters engage in racial-bloc voting that cannot be explained by partisan affiliation. Pp. 119–120.

(3) On the "totality of circumstances" inquiry, the focus must be on evidence that has more than a remote bearing on what the Fifteenth Amendment prohibits: present-day intentional racial discrimination regarding voting. Discrimination that occurred some time ago and present-day disparities characterized as ongoing "effects of societal discrimination" are entitled to much less weight. *Shaw* v. *Hunt*, 517 U. S. 899, 909–910. Pp. 120–121.

(c) Nothing in *Allen* v. *Milligan*, 599 U. S. 1, dictates a different result. That case merely addressed whether Alabama's novel evidentiary standard required a change to existing § 2 precedent. *Allen* did not address whether "race-based redistricting" under § 2 could "extend indefinitely into the future" despite significant changes in conditions, 599 U. S., at 45 (KAVANAUGH, J., concurring in part), nor did it address whether § 2 plaintiffs must disentangle race from politics in proving their case. Indeed, *Allen* did not address the Fourteenth Amendment at all. But here, the decision before the Court is based on the Fourteenth Amendment. Pp. 121–122.

(d) Under the updated *Gingles* framework, the facts of this suit easily require affirmance. Louisiana's enactment of SB8 triggered strict scrutiny because the State's underlying goal was racial. The State configured District 6 to achieve a black voting-age population over 50% because the *Robinson* court held that § 2 likely required the creation of an additional majority-black district. The State's intentional compliance with the court's demands constituted an "express acknowledgment that race played a role in the drawing of district lines." *Alexander*, 602 U. S., at 8.

No compelling interest justifies SB8 because § 2 did not require the State to create a new majority-minority district. At every step of the *Gingles* framework, the *Robinson* plaintiffs failed to prove their § 2 case. On the first *Gingles* precondition, the *Robinson* plaintiffs did not meet their burden because they did not provide an illustrative map that met all the State's nonracial goals, including the State's political goals.

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On the second and third *Gingles* preconditions, the *Robinson* plaintiffs offered evidence that black and white voters consistently supported different candidates, but their analysis did not control for partisan preferences. And on the totality of circumstances, the *Robinson* plaintiffs failed to show an objective likelihood of intentional discrimination, instead relying on historical evidence and evidence that failed to disentangle race from politics. Pp. 122–125.

732 F. Supp. 3d 574, affirmed and remanded.

ALITO, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, GORSUCH, KAVANAUGH, and BARRETT, JJ., joined. THOMAS, J., filed a concurring opinion, in which GORSUCH, J., joined, *post*, p. 126. KAGAN, J., filed a dissenting opinion, in which SOTOMAYOR and JACKSON, JJ., joined, *post*, p. 127.

Janai Nelson reargued the cause for appellants Press Robinson et al in No. 24–110. With her on the briefs for reargument were *Samuel Spital*, *Victoria Wenger*, *John S. Cusick*, *Colin Burke*, *Deuel Ross*, *I. Sara Rohani*, *Sarah Brannon*, *Megan C. Keenan*, *Adriel I. Cepeda Derieux*, *Sophia Lin Lakin*, *Cecillia D. Wang*, *Nora Ahmed*, *T. Alora Thomas-Lundborg*, *Daniel Hessel*, *John Adcock*, *Robert A. Atkins*, *Jonathan H. Hurwitz*, *Pietro J. Signoracci*, *Amitav Chakraborty*, *Adam P. Savitt*, and *Robert Klein*. Stuart Naifeh argued the cause for appellants in No. 24–110 on the original argument. With him on the briefs on the original argument were the above-named counsel.

J. Benjamin Aguiñaga, Solicitor General of Louisiana, argued and reargued the cause for appellant Louisiana in No. 24–109. With him on the briefs were *Elizabeth B. Murrill*, Attorney General of Louisiana, *Zachary Faircloth*, Principal Deputy Solicitor General, *Morgan Brungard*, Deputy Solicitor General, *Caitlan A. Huettemann*. With him on the briefs on the original argument were the above-named counsel and *Elizabeth Brown*, Assistant Solicitor General.

Edward D. Greim argued and reargued the cause for appellees in both cases. With him on the briefs was *Paul Loy Hurd*. *Phillip John Strach* and *Alyssa M. Riggins* filed a brief for appellee Landry in No. 24–109.

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Principal Deputy Solicitor General Mooppan argued the cause for the United States as *amicus curiae* urging affirmance. With him on the brief were *Solicitor General Sauer*, *Assistant Attorney General Dhillon*, *Principal Deputy Assistant Attorney General Osete*, *Aaron Z. Roper*, *Andrew G. Braniff*, and *David N. Goldman*. *Solicitor General Prelogar*, *Assistant Attorney General Clarke*, *Deputy Solicitor General Fletcher*, *Caroline Flynn*, *Tovah R. Calderon*, and *Noah B. Bokat-Lindell* filed a brief for the United States as *amicus curiae* urging vacatur and remand on the original argument.†

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†Briefs of *amici curiae* urging reversal were filed in both cases for the District of Columbia et al. by *Brian L. Schwalb*, Attorney General of the District of Columbia, *Caroline S. Van Zile*, Solicitor General, *Ashwin P. Phatak*, Principal Deputy Solicitor General, by *Letitia James*, Attorney General of New York, *Barbara D. Underwood*, Solicitor General, *Judith N. Vale*, Deputy Solicitor General, and *Andrea W. Trento*, Assistant Solicitor General, and by the Attorneys General for their respective States as follows: *Kris Mayes* of Arizona, *Rob Bonta* of California, *Philip J. Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Anne E. Lopez* of Hawaii, *Kwame Raoul* of Illinois, *Aaron M. Frey* of Maine, *Anthony G. Brown* of Maryland, *Andrea Joy Campbell* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Matthew J. Platkin* of New Jersey, *Raúl Torrez* of New Mexico, *Jeff Jackson* of North Carolina, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, *Charity R. Clark* of Vermont, *Nicholas W. Brown* of Washington, and *Joshua L. Kaul* of Wisconsin; for the Black Voters Matter Capacity Building Institute, Inc., et al. by *Amanda Giglio* and *Michael B. de Leeuw*; for the Brennan Center for Justice at New York University School of Law by *Kareem U. Crayton*, *Maura Eileen O'Connor*, and *Michael C. Li*; for the Campaign Legal Center by *Annabelle E. Harless*, *Mark P. Gaber*, *Aseem Mulji*, and *Simone Leeper*; for the Constitutional Accountability Center by *Elizabeth B. Wydra*, *Brianne J. Gorod*, and *David H. Gans*; for Former Republican Members of Congress by *Amit Agarwal*, *Beau Tremitiere*, and *Lauren Groth*; for the Louisiana Black Caucus by *Jonathan Miller* and *Stephen M. Irving*; for Louisiana Historians by *Hilary Harris Klein*, *Jeffrey Loperfido*, and *Mitchell Brown*; for Milligan Plaintiffs by *Jessica L. Ellsworth* and *Jo-Ann Tamila Sagar*; for the Southern Poverty Law Center by *Avner Shapiro*, *Keith Harrison*, *Preetha Chakrabarti*, and *Douglas M. Crockatt*; for Rep. Troy

JUSTICE ALITO delivered the opinion of the Court.

Section 2 of the Voting Rights Act of 1965, 52 U. S. C. § 10301 *et seq.*, was designed to enforce the Constitution—not

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Carter et al. by *LaRue L. Robinson*; for Travis Crum by *Rakesh N. Kilaru*, *Daniel Epps*, and *Travis Crum*, *pro se*; for Edward Galmon, Sr., et al. by *Abha Khanna*, *Lalitha D. Madduri*, and *Jacob D. Shelly*; and for Ellen D. Katz et al. by *Joshua Matz* and *Trisha Anderson*. *James F. Blumstein*, *pro se*, filed a brief as *amicus curiae* urging vacatur and remand in both cases.

Briefs of *amici curiae* urging affirmance in both cases were filed for the State of Alabama et al. by *Steve Marshall*, Attorney General of Alabama, *Edmund G. LaCour, Jr.*, Solicitor General, *Robert M. Overing*, Deputy Solicitor General, and *Dylan Mauldin* and *George Muirhead*, Assistant Solicitors General, and by the Attorneys General for their respective States as follows: *Stephen J. Cox* of Alaska, *James Uthmeier* of Florida, *Christopher M. Carr* of Georgia, *Raúl R. Labrador* of Idaho, *Theodore E. Rokita* of Indiana, *Brenna Bird* of Iowa, *Kris W. Kobach* of Kansas, *Lynn Fitch* of Mississippi, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *Drew Wrigley* of North Dakota, *Gentner Drummond* of Oklahoma, *Alan Wilson* of South Carolina, *Jonathan Skrmetti* of Tennessee, and *John B. McCuskey* of West Virginia; for the State of Missouri by *Catherine L. Hanaway*, Attorney General of Missouri, and *Louis J. Capozzi III*, Solicitor General; for the Town of Newburgh by *Misha Tseytlin* and *Kevin M. LeRoy*; for the America First Legal Foundation by *Jonathan F. Mitchell*, *Adam K. Mortara*, and *Gene P. Hamilton*; for the Center for Election Confidence by *Bradley A. Benbrook* and *Stephen M. Duvernay*; for Judicial Watch, Inc., et al. by *T. Russell Nobile*; for the Landmark Legal Foundation by *Matthew C. Forys*, *Michael J. O'Neill*, and *Richard P. Hutchison*; for the Pacific Legal Foundation by *Christopher M. Kieser* and *Joshua P. Thompson*; for the Project on Fair Representation by *Christopher E. Mills*; and for the Public Interest Legal Foundation et al. by *J. Christian Adams*.

Briefs of *amici curiae* were filed in both cases for Independent State Redistricting Commissioners by *John A. Freedman*, *Nancy L. Perkins*, and *Justin Levitt*; for the Lawyers' Committee for Civil Rights Under Law et al. by *Damon T. Hewitt* and *Robert Weiner*; for the Lincoln Club of Orange County et al. by *Mark P. Meuser*, *Michael Columbo*, and *Karin M. Sweigart*; for Louisiana Mathematics Professors et al. by *Sam Hirsch*, *Jessica Ring Amunson*, *Arjun R. Ramamurti*, *Judy Y. Barrasso*, and *Mithun B. Kamath*; for the National Conference of Black Lawyers et al. by *Jeanne Mirer* and *Jenipher R. Jones*; for the Navajo Nation by *Patricia*

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